TOWNSHIP OF LINCOLN
CLARE COUNTY
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Lincoln Township Zoning Board of Appeals

Roger Carey – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Ken Beougher*** - Alternate

TBA – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Friday, September 6, 2019

The meeting was called to order by Chair Carey at 7:00 pm.

Roll Call:
Present – Board Members: Chair Carey, Vice-Chair Swanson, Secretary Engelhardt, McCaslin, Alternate Ken Beougher
Staff: Acting Zoning Administrator Carol Majewski, Building Inspector Mantei, Recording Secretary Sherrod
Absent – Bridges, excused
Public – 3

Approval of Agenda: Chair Carey amended the agenda to correct the property number in Items 7 & 11. The number was correct in all other areas.

Public Comment: Chair Carey stated that during this session, any person may speak for up to 3 minutes, and speakers may only speak once.

Approval of Minutes:
Regular Meeting minutes of April 10, 2019 – It was moved by Engelhardt and seconded by McCaslin to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a Variance was made on July 29, 2019, by Tammie and Jana Locke-Purvis for their property at 466 W. Shingle Lk. Dr., Lake, Michigan 48632, consisting of Lot 7, West Old Grade Plat, Tax ID # 010-640-002-00. They are requesting approval for the construction of an Accessory Building and Fence both of which are out of compliance with the Lincoln Township Zoning Ordinance.

Public Notice: Notice of public hearing must be posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* August 15, 2019:

The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Friday, September 6, 2019, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal of Tammie and Jana Locke-Purvis for a variance on the property #010-640-002-00, located at 466 W. Shingle Lk. Dr., Lake, Michigan 48632. This appeal is to allow the construction of an Accessory Building and Fence both of which are out of compliance with the Lincoln Township Zoning Ordinance. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Thursday, September 5, 2019.

Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall.

Explanation of Practical Difficulty: Chair Carey read the following information:

The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Twp. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

1. Practical Difficulty: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to

unique circumstances specific to the property such as its narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property

2. Circumstances: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. That the variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
3. Ordinance Purpose Adherence: Does this request relate to properties other than described in the Variance request?
4. Variance Harmony: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
5. Effects: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
6. Property Use: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
7. Minimum Variance: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application:
19 Jul. 2019

Dear Jana Locke-Purvis,

I have reviewed your application for a fence and shed on the Shingle Lake front property — 18-010-640-002-00. 466 W. Shingle Lake Dr.

As we discussed on the phone. you have completed the project without either building or zoning permits. See Section 2.2 Zoning Permit Required of the Lincoln Township Zoning Ordinance (enclosed). Please contact Werner Mantel regarding a building permit. He has made a site visit today. 19 July 2019. He can be reached at 989-588-6780.

The fence is 42 inches tall: which exceeds the height limit in a front yard of 36 inches. See Article 20, Section 20.11 Fences and Walls of the Lincoln Township Zoning Ordinance (enclosed).

The shed is approximately 2.5 feet from the back-lot line. Structures in the R-2 district must be set back twenty-five feet from the rear line. See Article 3. Table 3-4 Site Development Requirement of the Lincoln Township Zoning Ordinance. (Enclosed)

In order to bring the property into compliance. the following must he completed within 15 days of receipt or this letter by certified first class mail.

Contact the Building Inspector.

The fence must be reduced in height in the front yard by 6 inches. The back yard may remain at 42". See Article 21 Definitions of the Lincoln Township Zoning Ordinance (enclosed).

The shed must be removed from the property or you may rebuild it to the appropriate building standards and in compliance with the Zoning Ordinance and move it to a location in the front yard in compliance with Article 20. Section 20.9 C1a of the Lincoln Township Zoning Ordinance (enclosed).

The option of requesting a variance from the Lincoln Township Zoning Ordinance in regards to the height of the fence and placement of the shed is available. I have enclosed the application for review and consideration.

Please contact me at your earliest convenience to discuss your options further.

Kind Regards,
Carol L. Majewski, Clerk
Acting Zoning Administrator

Purpose:

The purpose of this meeting is to determine if indicators exist to grant a variance as the zoning permit filed by the residents on May 25, 2019, and was denied. Application for Variance was made on July 29, 2019, by Tammie and Jana Locke-Purvis of 50 S. Onondaga Rd., Mason, MI 48854. In regard to a Zoning Permit Denial of an accessory building and fence on property located in Lincoln Township, at 466 W. Shingle Lk. Dr., Lake, Michigan 48632, property number 010-640-002-00. The following is the reason for Variance: to allow the construction of an Accessory Building, out of compliance with the setbacks and Fence, 42 inches in height both of which are out of compliance with the Lincoln Township Zoning Ordinance.

Correspondence & Communications to ZBA: Chair Carey read five letters or emails from owners of nearby property owners.

Presentation by Lincoln Township Zoning Administrator: Acting ZA Majewski reviewed the letter which is included above in the section "Denial of Zoning Application". She spoke briefly about her site visit findings.

Presentation by the Petitioner: Ms. Tammie Locke-Purvis explained that the projects are both unfinished and they have stopped all work after former ZA Abbott served a cease and desist order. The only reason they put the shed where they did was to avoid a loss of view of the lake by putting it in their front yard and also because there was already a falling down metal shed where they began building their new one. Skip Purvis explained that the fence was put up quickly to contain their dogs.

ZBA Members Comments & Questions: Engelhardt noted that they purchased the property in March of 2019. They stated that they were not familiar with it before then and had not owned lake property prior to this. Engelhardt went on to explain the reason for setbacks, including fire hazards. She explained how important ordinances are for lake properties as they are often so close together and emphasized that she is glad that they stopped construction when they did.

Swanson asked if they will turn the fence around so the finished side faces the neighbors and make it lower. Tammie replied that, yes, they intend to turn it around and shorten it if they have to.

Chair Carey asked if anyone explained to them that they can have a taller 48" cyclone (chain link) fence. They were not aware of that fact but did not consider that to be as nice looking as their current choice.

Public Comment Closed by Chair: At 7:22 pm. Chair Carey stated that no more public comment may be made at this time.

Discussion and further questions by ZBA Members

ZBA Members Finalize:
Prior to the final decision, Chair Carey explains that after we make and accept the motion, the applicant may wait to receive a final decision paper for court purposes. If the applicant does not wait around for the final decision paper, the decision will not be final until after the next ZBA meeting.

Chair Carey reopened the public meeting at 7:30.

Motions: Carey made the following motion:

In regard to Variance requested by Tammie and Jana Locke-Purvis on lot 010-640-002-00, Section 7 of West Old Grade plot, lot 2, owned by Tammie and Jana Locke-Purvis, address, 466 Shingle Lake Rd, Lake, MI 48632. The variance request is for a shed in the backyard in violation of Lincoln Township Ordinance 44, Section 20.9 Accessory Buildings, Paragraph C-2 which says due to the size this accessory building must comply with Table 3-4, backyard setback 25 feet from back lot line and side setback of 10 feet from the side lot line. Also, Paragraph C-3 which says Separation from another building, an accessory building shall not be located within 10 feet of another building. The Variance also requests a picket fence 42 inches in height in violation of Section 20.11, Fences and Walls, Paragraph a, Residential Fences number2 which says no fence in the front yard measured from ground up shall exceed 3 feet in height.

Review standards

Practical Difficulty: as the property can sustain a shed in the front yard and a 48-inch-high cyclone fence there is no practical difficulty

Circumstances: there are no special circumstances due to the actions of the applicant, the lot can be used as is and follow the ordinance.

Ordinance Purpose Adherence: based on the review standards demonstrated by the applicant, the variance would not observe the spirit of the zoning ordinance, providing for the orderly development of the township, including making provisions for land uses in the best interests of its citizens

Variance Harmony: in granting the Variance the purpose (harmony) of the Lincoln Township Zoning Ordinance would not be observed.

Effects: in allowing the variance it would have an adverse effect on the neighbor who aren't allowed to have a shed in their backyard closer than 25 feet, or a picket fence higher than 36 inches in their front yard.

Property use: no, the property owner can place the shed in the front yard and put up the proper size fence.

Minimum Variance: there is no need for a variance as the applicant can legally do what they want without a variance.

That said we find the applicants' review standards do not justify a variance.

I make a Motion based on the review standards that the Zoning Board of Appeals Deny the applicants' Variance Request for a shed in the back yard and a 42 inch high picket fence in the front yard of 466 Shingle Lake Rd.

Engelhardt seconded.

Roll Call Vote:
Carey: **Yes**; Engelhardt: **Yes**; Swanson: **No**; McCaslin: **Yes**; Beougher: **Yes**

Motion Passes: 4 Yeas; 1 Nay Appeal is Denied**.**

Public Comment: General discussion about where the applicants can go from here to comply and still have a shed and their desired fence.

Adjournment: Engelhardt made a motion to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 7:50 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary